



CHAPTER xlvii

An Act to authorise the Dover Harbour Board to construct new works and for other purposes.

[28th July 1950.]

WHEREAS the Dover Harbour Board (hereinafter referred to as "the Board") were constituted and incorporated by the Harbours and Passing Tolls &c. Act 1861 and by virtue of that Act and of a royal charter dated the sixth day of October sixteen hundred and six and of the Dover Harbour Act 1828 and numerous subsequent Acts the Board and their predecessors were authorised to maintain and improve Dover Harbour as existing from time to time: 24 & 25 Vict. c. 47.
9 Geo. 4. c. xxxi.

And whereas Dover Harbour is a principal port for the embarkation and disembarkation of passengers travelling between Great Britain and the Continent and there is an increasing tendency for tourist passengers to take motor cars to and from the Continent by means of vessels engaged in cross-channel services from and to Dover:

And whereas the present facilities at Dover Harbour for the expeditious loading and discharging into or from such vessels of motor cars accompanying passengers are inadequate to meet the existing and anticipated demands of tourist traffic and it would be of great public advantage if the Board were authorised to construct maintain and operate a new car ferry terminal in the part of Dover Harbour known as the Eastern Docks with attendant facilities for the reception and accommodation of passengers and motor vehicles and it is expedient to empower the Board to construct the works in that behalf in this Act described and to reclaim part of the bed and foreshore of Dover Harbour as by this Act provided:

And whereas it is expedient to authorise the Board to construct the new railways to abandon the portions of their existing railways and to stop up the streets and parts of streets within Dover Harbour described in this Act:

54 & 55 Vict.
c. cxxv.

61 & 62 Vict.
c. cxxxvi.

1 Edw. 7.

c. ccvi.

2 Edw. 7.

c. ccxxxvi.

10 & 11 Geo. 5.

c. lxxxv.

16 & 17 Geo. 5.

c. lxxxvii.

And whereas by the Dover Harbour Acts passed in the years 1891 1898 1901 1902 1920 and 1926 respectively the Board were authorised to raise any sum or sums not exceeding in the aggregate £5,800,000 by the creation and issue of redeemable debenture stock but by virtue of section 28 of the Dover Harbour Act 1901 (which provided that any moneys which the Board should raise under the powers of that Act should be applied among other purposes in the purchase redemption or cancellation of any Dover Harbour redeemable second debenture stock which might be created and issued after the passing of the said Act) the said aggregate sum of £5,800,000 was in effect reduced by £400,000 being the maximum amount which apart from the said section 28 the Board were empowered by the Dover Harbour Act 1891 and the Dover Harbour Act 1898 to raise by the creation and issue of the said second debenture stock but which power was never exercised:

And whereas pursuant to section 25 of the said Act of 1891 the Board raised £400,000 by the creation and issue of Dover Harbour redeemable first debenture stock and pursuant to section 28 of the said Act of 1901 the Board raised a further sum of £1,000,000 by the creation and issue of Dover Harbour redeemable debenture stock:

And whereas the Board applied part of the said sum of £1,000,000 in paying off and cancelling the whole of the said £400,000 Dover Harbour redeemable first debenture stock pursuant to the provisions in that behalf contained in sections 28 and 45 of the said Act of 1901:

And whereas the Board have not raised any sums other than the aforesaid sums of £400,000 and £1,000,000 respectively:

6 Edw. 7.
c. ccv.

And whereas in pursuance of an agreement dated the first day of June nineteen hundred and six set out in the Second Schedule to the Dover Harbour (Works &c.) Act 1906 and confirmed by section 45 of the said Act the payment of interest on the said £1,000,000 Dover Harbour redeemable debenture stock was guaranteed by the South Eastern Railway Company the London Chatham and Dover Railway Company and the South Eastern and Chatham Railway Companies Managing Committee and such guarantee was later continued by the Southern Railway Company:

10 & 11 Geo. 6.
c. 49.

And whereas in pursuance of the Transport Act 1947 the undertaking of the Southern Railway Company was transferred to the British Transport Commission (hereinafter referred to as

“ the commission ”) on the first day of January nineteen hundred and forty-eight and the commission are now liable in respect of the said guarantee :

And whereas the further exercise by the Board of their existing powers of raising money is subject to the consent of the commission and the Board are otherwise subject to the consent or control of the commission in carrying on their undertaking as provided by the said agreement of 1906 and various subsequent Acts relating to the Board :

And whereas the issued capital of the Board now consists of £815,810 redeemable debenture stock being the amount now outstanding of the sum of £1,400,000 redeemable debenture stock created and issued by the Board as aforesaid and the existing borrowing powers of the Board remain unexercised to the extent of £4,000,000 of which they are authorised to raise £3,000,000 by the creation and issue of second redeemable debenture stock :

And whereas it is expedient that the Board should be authorised to apply to the purposes of this Act moneys which they are authorised by the existing Acts to raise by the creation and issue of second redeemable debenture stock subject to the consent of the commission and to the observance by the Board of the covenants and obligations on their part for the benefit of the commission contained in the said agreement of 1906 and subsequent Acts relating to the Board :

And whereas it is expedient that the provisions of the Dover Harbour Act 1920 with respect to second redeemable debenture stock should be amended and further provision made with respect thereto as in this Act contained :

And whereas it is expedient that further powers be conferred on the Board and that the Acts relating to the Board be amended in certain other respects as by this Act provided :

And whereas it is expedient that the other provisions of this Act be enacted :

And whereas plans and sections showing the situation lines and levels of the works by this Act authorised and the lands which may be taken or used compulsorily for the purposes thereof and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands have been deposited with the clerk of the county council of the administrative county of Kent and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I

PRELIMINARY

Short and
collective titles.

- 1.—(1) This Act may be cited as the Dover Harbour Act 1950.
(2) The Dover Harbour Acts 1828 to 1949 and this Act may be cited together as the Dover Harbour Acts 1828 to 1950.

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I—Preliminary.

Part II—Works and lands.

Part III—Financial.

Part IV—Miscellaneous.

Incorporation
of Acts.

3. The following Acts and parts of Acts so far as applicable for the purposes of this Act and not inconsistent with or varied by this Act are hereby incorporated with and form part of this Act:—

8 & 9 Vict.
c. 18.

- (1) The Lands Clauses Acts except sections 128 to 132 of the Lands Clauses Consolidation Act 1845:

Provided that the bond required by section 85 of that Act shall be under the common seal of the Board and shall be sufficient without the addition of the sureties mentioned in that section:

8 & 9 Vict.
c. 20.
26 & 27 Vict.
c. 32.

- (2) The Railways Clauses Consolidation Act 1845 and Part I (relating to the construction of a railway) of the Railways Clauses Act 1863:

Provided that nothing in the Railways Clauses Consolidation Act 1845 or this Act shall constitute the Board a railway company within the meaning of the Railway and Canal Traffic Act 1888 or any Act amending or enlarging that Act:

51 & 52 Vict.
c. 25.

- (3) The Harbours Docks and Piers Clauses Act 1847:

10 & 11 Vict.
c. 27.

Provided that—

(i) the provisions of sections 16 to 19 of the said Act of 1847 shall not be in force unless and until the Board shall be required by the Minister to provide and maintain a lifeboat a tide gauge and a barometer;

(ii) in the application of the said Act to this Act the word “vessel” shall include a seaplane on the surface of the water and craft of unusual construction;

(iii) nothing in the said Act shall require or authorise the harbour-master or any other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

4.—(1) In this Act unless there be something in the subject Interpretation. or context repugnant to such construction—

“ the Act of 1901 ” “ the Act of 1920 ” “ the Act of 1923 ” 13 & 14 Geo. 5.
“ the Act of 1926 ” “ the Act of 1928 ” and “ the Act of 1949 ” mean the Dover Harbour Act of those
respective years ; c. lxxxvii.
18 & 19 Geo. 5.
c. xci.
12 & 13 Geo. 6.
c. xxxiv.

“ the authorised works ” means the works described in and authorised by section 5 (Power to make works) of this Act ;

“ the Board ” means the Dover Harbour Board ;

“ the existing Acts ” means the Dover Harbour Acts 1828 to 1949 ;

“ the harbour ” means Dover Harbour as defined by section 3 (Interpretation) of the Act of 1949 ;

“ the harbour works ” means Works Nos. 1 to 5 described in and authorised by the said section 5 of this Act ;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919 the Town and Country Planning Act 1947 and the Lands Tribunal Act 1949 ; 9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.

“ the Minister ” means the Minister of Transport ; 12 & 13 Geo. 6.
c. 42.

“ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Board ; 38 & 39 Vict.
c. 83.

“ the undertaking ” means the undertaking of the Board as authorised from time to time.

(2) The provisions of paragraph (a) of subsection (2) of section 3 (Interpretation) of the Act of 1949 shall extend to and apply for the purposes of this Act as if those provisions were enacted in this Act.

(3) This Act is to be read as if the words “ or thereabouts ” were inserted after each distance and length mentioned in section 5 (Power to make works) section 19 (Abandonment of portions of railways) section 30 (For further protection of Postmaster-General) and in the schedule to this Act.

PART II

WORKS AND LANDS

Power to
make works.

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections the following works in the parish and borough of Dover in the county of Kent (that is to say):—

Work No. 1 A solid embankment on the south-eastern side of and parallel with the existing retaining wall commencing by a junction with the west jetty at a point 55 feet south-east of the junction of the eastern side of the west jetty with the said wall and terminating at a distance of 185 feet measured in a north-easterly direction from the first-mentioned junction:

Work No. 2 A quay being a widening and improvement of the west jetty on its eastern side for a distance of 1160 feet commencing at a point 10 feet north-east of the commencement of the said Work No. 1 and terminating at or near the southern extremity of the said jetty:

Work No. 3 A pier or jetty on the eastern side of and parallel with the west jetty commencing at the termination of the said Work No. 1 and terminating at a point 390 feet seawards from the point of commencement:

Work No. 4 A pier or jetty on the south-easterly side of and parallel with the said Work No. 1 commencing at the said Work No. 2 and terminating at the said Work No. 3:

Work No. 5 A pier or jetty between and parallel with the said Work No. 2 and the said Work No. 3 commencing by a junction with the said Work No. 4 and terminating at a point 400 feet seawards from the point of commencement:

Work No. 6 A railway (No. 1) 0 miles 0 furlongs 4.50 chains in length commencing by a junction with Railway No. 1 authorised by the Act of 1923 at a point 5 feet east of the east end of the Wellington Dock swing bridge and terminating at a point 270 feet north-east of its point of commencement by a junction with Railway No. 2 authorised by the said Act:

Work No. 7 A Railway (No. 2) 0 miles 0 furlongs 4.25 chains in length commencing by a junction with the said Work No. 6 and terminating at a point 265 feet south of its point of commencement by a junction with the railway referred to in section 12 (Confirming and sanctioning construction of railway by Harbour Board) of the Act of 1928:

6. The Board may by means of Work No. 1 authorised by section 5 (Power to make works) of this Act enclose and reclaim from the sea the bed and foreshore of the harbour within the limits of deviation for that work as shown on the deposited plans.

PART II
—cont.

Power to
reclaim land
from sea.

7. The Board may from time to time within a radius of 250 yards from the southern extremity of the west jetty provide place and maintain on and in the bed of the harbour and remove and renew such dolphins piles fenders buoys marks and lights as may be necessary for the safety and convenience of vessels navigating to and from the harbour works.

Additional
works.

8. Subject to the provisions of this Act the Board may make provide and maintain within the limits of deviation shown on the deposited plans relating to the harbour works all such signalling equipment bridges approaches roads rails sidings junctions gates sheds buildings yards quays wharves walls embankments protection works pipes wires mains cables conduits sewers drains culverts sluices jetties groynes shipping places landing places stairs stages gridirons gantries cranes dolphins moorings buoys beacons lights and other works building machinery and appliances as may be necessary or convenient for the purposes of or in connection with or subsidiary to the harbour works or any of them:

Subsidiary
works.

Provided that any electric wires mains cables or other apparatus constructed and maintained under the provisions of this section shall be so constructed used and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

41 & 42 Vict.
c. 76.

9. The Board may in constructing the authorised works deviate from the lines thereof to the extent of the limits of deviation shown on the deposited plans and may deviate from the levels thereof shown on the deposited sections in the case of the harbour works to any extent not exceeding ten feet upwards or downwards and in the case of the railways (Work No. 6 and Work No. 7) authorised by this Act in accordance with the provisions of the Railways Clauses Consolidation Act 1845:

Power to
deviate.

Provided that in the case of the harbour works no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Minister.

10. If the authorised works are not completed within ten years from the passing of this Act or such extended time as the Minister may upon the application of the Board allow then on the expiration of that period or such extended time (as the case may be) the powers by this Act granted for the making thereof shall cease except as to so much thereof as is then completed:

Period for
completion
of works.

PART II
—cont.

Provided that the Board may at any time and from time to time within the limits of deviation shown on the deposited plans relating to the harbour works make and maintain all such extensions improvements and enlargements of those works as they find requisite.

Certification
by Minister.

11. No line of rails constructed under this Act shall be used for the public conveyance of passengers until it has been certified by the Minister to be fit for that use.

Power to
acquire lands.

12.—(1) Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the authorised works.

(2) The powers of the Board for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October nineteen hundred and fifty.

(3) The Board shall not under the powers of this section acquire the property in any public highway but the Board may acquire such easements and rights in or under any such highway as may be reasonably required by the Board for constructing maintaining renewing and using the railways (Work No. 6 and Work No. 7) authorised by this Act.

Correction of
errors in
deposited
plans and
book of
reference.

13.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plans or in the deposited book of reference the Board after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the borough of Dover for the correction thereof.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the Kent County Council and a copy thereof shall be deposited with the town clerk of Dover and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Board to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section shall be kept by such clerks respectively with the other documents to which it relates.

14.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Board any easement or right required for the purposes of this Act in over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

PART II
—cont.

Grant of
easements by
persons under
disability.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

15. The Board may abandon and discontinue the maintenance and use of and may demolish and remove—

Power to
remove
portions of
west and south
jetties.

(a) the existing spur on the eastern side of the west jetty ;
and

(b) the south jetty from its present extremity for a distance of 40 feet measured in an easterly direction from that extremity.

16.—(1) The Board may enter upon and from time to time dredge scour and deepen the bed of the harbour including the camber or submarine harbour and blast any rock and remove carry away and dispose of any chalk gravel rock or other substance taken up or collected by means of such dredging scouring or blasting.

Power to
dredge etc.

(2) All chalk gravel rock and other materials dredged up or removed by the Board in the exercise of the powers of this section shall be the property of the Board and they may use the same or any part thereof for the purpose of or in connection with the reclamation of the portion of the bed and foreshore of the harbour within the limits of deviation for Work No. 1 authorised by section 5 (Power to make works) of this Act as shown on the deposited plans or they may otherwise dispose of or remove or deposit the same as they think fit:

Provided that no such materials shall be laid down or deposited in any place below high-water mark of ordinary spring tides other than within the said limits of deviation without the consent in writing of the Admiralty and the Minister having been first obtained.

(3) Nothing herein contained shall be deemed to authorise in relation to any bed of the sea vested in the Crown within the limits of this Act the removal of any such materials by the Board or their licensees otherwise than to the extent hereinbefore mentioned.

(4) The powers of the Board under this section shall be exercisable subject to the provisions of section 20 (Crown rights) of this Act and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by

PART II
—cont.

the Commissioners of Crown Lands on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Board to the Commissioners of Crown Lands of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Board under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands.

Power to
develop
specified lands.

17.—(1) In this section the expression “the specified lands” means the lands belonging to the Board in the Eastern Docks the limits whereof are shown on the deposited plans and thereon delineated as “Limit of lands referred to as ‘the specified lands’ in the clause of the Dover Harbour Bill of which the marginal note is ‘Power to develop specified lands’”.

(2) The Board may in connection with the harbour works lay out adapt and develop the specified lands and may provide construct and maintain on those lands and may furnish stock equip manage operate lease or license offices warehouses refreshment rooms bars shops garages and other buildings parking places for vehicles and public conveniences and may enter into and carry into effect vary or rescind contracts and agreements with any association body corporate or person for or in relation to the management use or operation of any such buildings or parking places for vehicles.

(3) The Board and any such association body corporate or person as is referred to in subsection (2) of this section may make and recover reasonable charges for the use of any facilities provided by any of them under this section on the specified lands.

(4) Nothing in this section shall affect the provisions of any enactment relating to the sale of intoxicating liquor or tobacco.

New works to
form part of
undertaking.

18. The works constructed under the powers of this Act including the sea bed and foreshore enclosed and reclaimed thereby and any facilities provided by the Board under section 17 (Power to develop specified lands) of this Act and each and every of them and any works connected therewith respectively shall for the purposes of dues rates rents charges and taxes and for all other purposes be deemed to be part of the undertaking and of the harbour.

Abandonment
of portions
of railways.

19. The Board may abandon and discontinue the maintenance and use of the following portions of railways (that is to say):—

- (a) the portion of Railway No. 2 authorised by the Act of 1923 0 miles 0 furlongs 4.70 chains in length commencing at the point of termination of Railway No. 1 (Work No. 6) authorised by this Act and terminating at a point 52 feet north-west of the root of the Prince of Wales Pier;

(b) the portion of the railway referred to in section 12 (Confirming and sanctioning construction of railway by Harbour Board) of the Act of 1928 0 miles 0 furlongs 2.22 chains in length commencing by a junction with Railway No. 1 authorised by the Act of 1923 at a distance of 135 feet from the east end of the Wellington Dock swing bridge and terminating by a junction with Railway No. 2 (Work No. 7) authorised by this Act ;

(c) the portion of Railway No. 2 authorised by the Act of 1923 0 miles 0 furlongs 8.18 chains in length being the north-west siding commencing at a point 620 feet north-east of the termination of the said Railway No. 1 authorised by this Act and terminating at a point 515 feet north-east of the point of its commencement ;

and may remove the rails and other works forming part of the portions of railways so abandoned.

20. Nothing in this Act affects prejudicially any estate right Crown rights. power privilege or exemption of the Crown and in particular nothing herein contained authorises the Board to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of the Commissioners of Crown Lands on behalf of His Majesty first had and obtained for that purpose.

21.—(1) Subject to the provisions of this Act any work authorised by this Act so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides shall only be constructed in accordance with plans and sections approved by the Minister and subject to such restrictions and regulations as the Minister may prescribe before such work is begun. Works below high-water mark to be subject to approval of Minister.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Minister may abate and remove the same and restore the site thereof to its former condition at the cost of the Board and the amount of such cost shall be due from the Board to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

22. If at any time the Minister deems it expedient for the Survey of purposes of this Act to order a survey and examination of any work constructed by the Board under the powers of this Act which shall be on under or over tidal waters or tidal lands below Minister.

PART II
—cont.

high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Board shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Board to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Abatement
of work
abandoned
or decayed.

23.—(1) Where any work constructed by the Board under the powers of this Act situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Minister may by notice in writing either require the Board at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Board they have failed to comply with such notice the Minister may execute the works required to be done by the notice at the expense of the Board and the amount of such expense shall be a debt due from the Board to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Lights on
works during
construction.

24.—(1) The Board shall at or near such part of the works by this Act authorised as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister shall from time to time require or approve.

(2) If the Board fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case

of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

PART II
—cont.

25.—(1) After the completion of the works by this Act authorised the Board shall at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct. Permanent lights on works.

(2) If the Board fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

26.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Board shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that Corporation for directions as to the means to be taken. Provision against danger to navigation.

(2) If the Board fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

27.—(1) The Board may stop up the whole or such portion or portions as they may from time to time think fit of the streets or parts of streets mentioned in the schedule to this Act and thereupon all rights of way over the street or the portion thereof stopped up and other rights in respect thereof shall be extinguished but the Board shall not stop up any street or portion thereof unless they are owners in possession of all houses and lands (other than lands forming part of any street) on both sides of the street or portion to be stopped up except so far as the owners lessees and occupiers of such houses and lands may otherwise agree : Power to stop up streets.

Provided that the Board shall make compensation to all parties interested in respect of any private rights of way extinguished

PART II
—cont.

under or by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(2) If the Board are the owners in fee simple of the site and soil of any street or portion of a street stopped up under—

(a) this section ; or

(b) any other enactment under which highways may be permanently stopped up or diverted or public rights of way may be extinguished ;

they may appropriate and use such street or portion thereof for the purposes of the undertaking and any such street or portion of a street so appropriated shall for all purposes be part of the undertaking and of the harbour.

(3) No portion of the streets or parts of streets mentioned in the said schedule connecting the Esplanade and Snargate Street shall be stopped up until a footpath has been dedicated for public use along the line shown coloured red on the plan (hereinafter referred to as “ the signed plan ”) signed in quadruplicate by Sir Charles MacAndrew the chairman of the committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Private Bill Office of the House of Commons one at the principal office of the Board and one at the office of the town clerk of the borough of Dover (hereafter in this section referred to as “ the borough ”) which said footpath as far as may be possible shall have a minimum width of six feet.

(4) The Board may—

(a) in dedicating the said footpath alter the line (but not the width) thereof as shown on the signed plan between the point marked A on the signed plan and Snargate Street ; and

(b) carry the said footpath by means of a footbridge constructed between the said point marked A and Snargate Street.

(5) The right of the public to use the said footpath as so dedicated shall be subject to and exercised so as not to interfere with the exercise or fulfilment of the powers rights and duties of the Board with respect to the provision and maintenance of railway lines and other works the operation of rail and dock traffic and the maintenance operation and opening of Wellington Bridge.

(6) If any portion of the said streets or parts of streets connecting the Esplanade and Snargate Street is stopped up under the provisions of this section (the portion or portions of the said streets or parts of streets stopped up as aforesaid being hereafter

in this section referred to as “ the stopped-up street ”) the Board shall permit the use by vehicular traffic of so much of the stopped-up street and of the adjoining lands as may be reasonably necessary to enable vehicular traffic conveniently to pass and repass between the Esplanade and Snargate Street between the hours of seven o'clock in the morning and eleven o'clock in the evening Provided that—

- (a) such traffic shall not interfere with the exercise or fulfilment of the powers rights and duties of the Board with respect to the provision and maintenance of railway lines and other works the operation of rail and dock traffic and the maintenance operation and opening of Wellington Bridge ;
- (b) nothing in the foregoing provisions of this subsection shall be construed as preventing the Board from providing and as occasion may require operating control barriers at each end of the public highway referred to in paragraph (1) of the schedule to this Act for the purpose of more effectively preventing interference by vehicular traffic with the exercise or fulfilment of the powers rights and duties of the Board referred to in the last foregoing paragraph ; and
- (c) nothing in the foregoing provisions of this subsection shall be deemed to constitute the stopped-up street or the adjoining lands a public highway.

(7) If by reason of the development of the undertaking or the trade thereof or through any other factor the volume of dock road and rail traffic increases so that in the opinion of the Board the passing and repassing of vehicular traffic under the last foregoing subsection interferes unduly with the efficient and economical development maintenance or management of the undertaking the Board may by order made and submitted to the Minister for confirmation by him prohibit such vehicular traffic either entirely or to the extent and otherwise as may be specified in the order.

(8) Before submitting an order to the Minister for confirmation under this section the Board shall publish once at least in each of two successive weeks in one or more local newspapers circulating in the borough a notice—

- (a) stating the general effect of the order ;
- (b) specifying a place in the borough where a copy of the order may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice ;
- (c) stating that the order is about to be submitted to the Minister for confirmation and that within the said period

PART II
—cont.

any person may by notice to the Minister object to the confirmation of the order.

(9) During the said period of twenty-eight days a copy of the notice shall be exhibited in such manner and in such positions on or near the stopped-up street as may be reasonably sufficient for notifying persons affected of the application to the Minister.

(10) Not later than the date on which the said notice is first published the Board shall serve a copy thereof and a copy of the order on the town clerk of the borough.

(11) If no objection is duly made or if all objections so made are withdrawn then the Minister may if he thinks fit confirm the order with or without modification but in any other case unless it appears to him that the objection is of a trivial nature he shall before confirming the order cause a public inquiry to be held and shall consider any objection not withdrawn and the report of any person who held the inquiry and may then confirm the order with or without modification.

(12) For the purpose of the last foregoing subsection an objection shall not be deemed to be duly made unless—

- (a) it is made within the time and in the manner specified in the notice referred to in subsection (8) of this section ;
and
- (b) the objection comprises or there is submitted therewith a statement in writing of the grounds thereof.

(13) As soon as may be after an order has been confirmed by the Minister the Board shall publish in one or more local newspapers circulating in the borough a notice stating that the order has been confirmed and naming the place where a copy of the order as confirmed may be seen at all reasonable hours and shall serve a like notice on every person who having given notice to the Minister of his objection to the confirmation of the order appeared at the public inquiry in support of his objection.

(14) A copy of a newspaper containing a notice published in pursuance of this section shall be sufficient evidence of the publication of the notice.

(15) An order to which this section applies shall come into operation upon but not until such date as may be specified in the order as confirmed.

(16) Where upon the submission of an order under this section the Minister either decides not to confirm the order or confirms it with modifications the Board shall not submit a further order to the Minister for confirmation within twelve months from the date of the Minister's decision or (as the case may be) the date upon which the first-mentioned order came into operation.

28. So much of any work authorised by this Act as shall be constructed upon the foreshore and bed of the harbour and is not included in any parish shall on and after the completion thereof be deemed to be for all purposes within the parish and borough of Dover.

PART II
—cont.

Works to be
within parish
and borough
of Dover.

29.—(1) Where in the exercise of the powers conferred by section 27 (Power to stop up streets) of this Act any highway or portion of a highway is stopped up the following provisions shall unless otherwise agreed in writing between the Board and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up :—

For protection
of Postmaster-
General.

- (a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Board of his intention to remove the line or that part thereof as the case may be ;
- (b) The Postmaster-General may by notice to the Board in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it ;
- (c) The Postmaster-General shall be entitled to recover from the Board the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require ;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Board and the provisions of the Telegraph Acts 1863 to 1949 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Board shall send by post to the Postmaster-General a notice informing him of such stopping up and the

PART II
—cont.

period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression “telegraphic line” has the same meaning as in the Telegraph Act 1878.

For further
protection of
Postmaster-
General.

30.—(1) For the removal of doubts it is hereby declared that nothing in this Act contained authorises the Board to obstruct or in any way interfere with the unrestricted right of the Postmaster-General reserved by an agreement dated the sixteenth day of March nineteen hundred and twenty-nine and made between the Admiralty of the one part and the Board of the other part (as amended by a supplemental agreement dated the fourth day of June nineteen hundred and thirty and made between the same parties) to the use in common of the camber or submarine harbour and the wharves and jetties therein for berthing vessels belonging to or chartered by the Postmaster-General together with the right of ingress or egress at all times from or to the outer harbour.

(2) The Board shall not berth or permit to be berthed any vessel on the eastern side of Work No. 3 authorised by section 5 (Power to make works) of this Act in such a manner as to obstruct or prejudicially affect the use of the post-office jetty at the north-western side of the camber or submarine harbour as a berth for vessels belonging to or chartered by the Postmaster-General or obstruct or in any way interfere with the use by such vessels of the off-mooring anchor situate 360 feet southward of the said post-office jetty.

(3) In constructing Works Nos. 1 and 3 authorised by the said section 5 the Board shall leave a channel not less than 10 feet wide between the said works and the western end of the said jetty for the passage at all times of small boats belonging to or used by the Postmaster-General to and from the post-office landing steps on the inshore or northern side of the post-office jetty from and to the camber or submarine harbour.

For protection
of Dover
Corporation.

31. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Dover (in this section referred to as “the corporation” and “the borough” respectively) shall in addition to any other provisions enuring for such protection or benefit and unless otherwise agreed in writing between the Board and the corporation apply and have effect (that is to say):—

(1) In this section—

“the new railways” means the railways (Work No. 6 and Work No. 7) authorised by this Act insofar as the same will be constructed on any part of a public highway;

“the existing railways” means the portions of railways referred to in section 19 (Abandonment of portions of railways) of this Act ;

“apparatus” means the sewers drains culverts and road gullies and the water mains pipes valves and connections of the corporation and all works and other apparatus of the corporation in connection therewith ; and

the expression “any enactment” where used with reference to the stopping up of a highway or to a highway stopped up means section 27 (Power to stop up streets) of this Act and any other enactment under which highways may be permanently stopped up or diverted or public rights of way may be extinguished :

- (2) (a) Before commencing to construct any part of the new railways the Board shall consult the corporation as to the time when the construction of such part shall be commenced and as to the extent of the surface of the highway that it may be reasonably necessary for the Board to occupy in the construction of such part and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time to the extent and in accordance with conditions agreed between the Board and the corporation or failing agreement settled by arbitration ;
- (b) Any such highway shall be reinstated by the Board in a manner reasonably approved by the corporation and to their reasonable satisfaction :
- (3) Before commencing the construction of the new railways the Board shall submit to the corporation plans sections and particulars thereof for their reasonable approval :
- (4) If the corporation shall not within twenty-eight days after the submission to them of any plans or sections under the provisions of this section signify to the Board in writing their approval or disapproval thereof they shall be deemed to have approved the same :
- (5) The Board shall not construct the new railways otherwise than in accordance with such plans and sections as may be so approved by the corporation or if such approval be refused as may be settled by arbitration and the new railways shall be constructed under the

PART II
—cont.

superintendence of the surveyor of the corporation (if he sees fit to attend for that purpose) and to the reasonable satisfaction of the corporation:

Provided that if any question affecting any plans and sections which may have been approved by the corporation under the foregoing provisions of this section shall be referred to arbitration under any other section of this Act the Board shall give the corporation notice thereof and the corporation shall be entitled to be heard at such arbitration and the plans and sections settled by such arbitration shall be deemed to have been approved under this section:

- (6) The Board shall construct the new railways so that the top of the rails shall coincide with the surface of the road and shall to the reasonable satisfaction of the corporation provide and fix check rails to the track of the new railways throughout and make all suitable and necessary alterations to such roads so as to make proper provision for the drainage thereof:

Provided that if it shall be agreed between the corporation and the Board or (in case of difference) determined by arbitration to be necessary that the corporation should metal the unmetalled portion of or alter the level of any road on which the new railways are laid or are authorised to be laid the Board shall at their own expense lay or (as the case may be) alter the rails so that the top thereof shall be on a level with the surface of the road as metalled or altered:

- (7) The Board shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic on the road the rails of the new railways and the substructure upon which the same rest:

- (8) The Board shall at their own expense at all times maintain and keep in good condition and repair with such materials and in such manner as the corporation shall reasonably direct and to their reasonable satisfaction so much of any such road as aforesaid as lies between the rails of the new railways and as extends eighteen inches beyond those rails and on each side of the new railways in the same manner as if such railways were tramways and as if the provisions of the Tramways Act 1870 applied thereto:

- (9) Any additional expense which the corporation may reasonably incur in the construction laying or execution of additional apparatus or in the maintenance repair protection alteration enlargement or renewal of existing apparatus by reason or in consequence of the new

railways and the reasonable expense of the strengthening or protection of any apparatus which may be rendered necessary by the construction maintenance or user of the new railways shall be paid to the corporation by the Board:

- (10) The speed of any engines carriages trucks and other vehicles passing along the new railways shall be reasonable having regard to all the circumstances of the case:
- (11) When the Board have pursuant to section 19 (Abandonment of portions of railways) of this Act abandoned any portion of the existing railways they shall if so required by the corporation forthwith take up and remove the rails and surfacing of that portion of the existing railways:
- (12) On the taking up and removal of any such rails or surfacing the Board shall with all convenient speed and in all cases within six weeks at the most (unless the corporation otherwise consent in writing) fill in the ground and make good the surface and to the reasonable satisfaction of the corporation restore the portion of road in on or under which such rails or surfacing were laid or placed to as good a condition as that in which it was before the rails and surfacing were laid or placed therein thereon or thereunder and shall clear away all surplus paving or metalling material or rubbish occasioned by such works and they shall in the meantime cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night until such filling in making good restoration and clearing away as aforesaid has been completed or (where the works necessary for the restoration are done by the corporation under the provisions of paragraph (14) of this section) until the removal of such rails or surfacing has been completed:
- (13) The Board and the corporation may enter into and carry into effect agreements for and with respect to the removal or non-removal of the whole or any part of the existing railways and the rails and surfacing thereof and the reinstatement of the carriageway or footpath in which such rails or surfacing are or is situate and for and with respect to any of the purposes or provisions of this section:
- (14) (a) If the Board shall fail to remove any rails or make good or restore any road in pursuance of the foregoing provisions of this section the corporation may themselves remove the rails and surfacing and the Board shall pay to the corporation the cost of such removal

PART II
—cont.

and of the making good of the road by the corporation such cost to be certified by the town clerk of the borough or by some other authorised officer of the corporation whose certificate shall be final and conclusive:

(b) If the Board fail to pay the amount so certified within one month after delivery to them of such certificate or a copy thereof the corporation may without any previous notice to the Board (but without prejudice to any other remedy which they may have for the recovery of the amount) sell and dispose of the materials of the rails and surfacing so removed and may out of the proceeds of such sale pay and reimburse themselves the amount of the cost certified as aforesaid and of the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the corporation to the Board:

- (15) Subject to the provisions of this section hereinafter contained notwithstanding the stopping up of the whole or any portion or portions of any highway under the powers of any enactment or the appropriation thereof by the Board under the powers of section 27 (Power to stop up streets) of this Act—

(a) the Board shall not interfere with any apparatus in or under such highway or portion or portions thereof so stopped up or appropriated;

(b) the corporation shall at all times have such rights of access to the apparatus situate in or under any such highway or portion or portions thereof as they had immediately before such stopping up or appropriation; and

(c) the corporation shall be at liberty to execute and do all such works and things in upon or under such highway or portion or portions thereof as may be necessary for inspecting repairing maintaining renewing altering enlarging or removing such apparatus or laying new apparatus:

- (16) If the Board intend to build on any highway or portion or portions thereof stopped up or appropriated or if for any reason compliance with paragraph (15) of this section is impracticable the corporation may and if so requested by the Board shall and by such means as the corporation may reasonably decide cut off remove divert or alter the position of all or any of the apparatus in such highway or portion or portions thereof and connect any existing apparatus to any new apparatus which may be requisite and the reasonable expense

incurred by the corporation in such cutting off removal diversion or alteration of position and connection to new apparatus and in the provision of apparatus in substitution therefor shall be repaid to them by the Board:

(17) If as a result of the exercise by the Board of the powers of this Act—

(a) any damage to any apparatus or property of the corporation; or

(b) any interruption in the supply of water; or

(c) any impediment to the flow of sewage or drainage;

is caused by the Board their contractors agents workmen or servants or any person in the employ of them or any of them then the Board shall bear and pay the cost reasonably incurred by the corporation in making good such damage and shall make compensation to the corporation for any loss sustained by them by reason of such damage interruption or impediment and shall indemnify the corporation against all claims demands proceedings costs damages and expenses which may be made or taken against or recovered from or incurred by the corporation by reason or in consequence of any such damage interruption or impediment:

(18) The Board shall bear and pay to the corporation the amount of any expenses reasonably incurred by the corporation in or in connection with the cutting off removal diversion or alteration of position of any apparatus and the connecting of any new apparatus with any existing apparatus rendered necessary by reason or in consequence of the exercise by the Board of the powers of this Act and shall indemnify the corporation against all claims and demands by the owners or occupiers of premises supplied by means thereof:

(19) If any claim or demand in respect of which the Board may be required to indemnify the corporation is made the Board shall be informed thereof and they shall be entitled to conduct all negotiations for a settlement of such claim or demand and any litigation that may arise therefrom:

(20) If in carrying out any such removal diversion or alteration of position of apparatus as is referred to in paragraph (16) or paragraph (18) of this section—

(a) (i) the corporation erect lay or place new apparatus in substitution for their existing apparatus; and

PART II
—cont.

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the removal diversion or alteration of position of the apparatus ; or

(b) the expenses incurred by the corporation in or in connection with the removal diversion or alteration of position of the apparatus are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) or of greater capacity or apparatus of improved type ; or

(ii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which such greater depth is reasonably necessary in order to avoid interference with other underground apparatus works or structures or is occasioned by the exercise by the Board of the powers of this Act ;

the corporation shall themselves bear (in the case referred to in sub-paragraph (a) of this paragraph) such proportion of the said expenses as represents the estimated saving of expense to the corporation resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in sub-paragraph (b) of this paragraph) such proportion of the said expenses as represents the amount by which such expenses exceed the cost which would have been incurred if the dimensions (other than length) or the capacity of the apparatus so laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth as the existing apparatus :

Provided that where the apparatus had been laid or constructed in or under any portion of a highway stopped up under the powers of any enactment within the period of two years immediately preceding such stopping up and at the time of the laying or construction of that apparatus the Board had given to the corporation notice in writing of their intention of building on the portion of highway affected or of exercising powers necessitating the removal or diversion or alteration of position of the apparatus with a statement of the manner in which and the extent to which they intended to build or exercise such powers no part of the said expenses shall be repayable by the Board if the building is done or the said powers are exercised by the Board

in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the corporation:

- (21) Whenever by reason of the exercise by the Board of the powers of this Act any apparatus shall be rendered derelict useless or unnecessary the Board shall pay to the corporation such a sum as may be agreed between the Board and the corporation to be the value of such apparatus and the apparatus shall thereupon become the property of the Board and the Board shall also pay to the corporation any expenses reasonably incurred by them in consequence of any such apparatus being so rendered derelict useless or unnecessary:
- (22) Before incurring any expense for the repayment of which the Board may become liable under the provisions of this section the corporation shall supply to the Board particulars of the works to be executed or things to be done together with an estimate of the expense to be incurred:
- (23) If any difference at any time arises between the corporation and the Board touching the foregoing provisions of this section or anything to be done or not to be done thereunder (other than a difference as to the meaning or construction of this section which does not arise in the course of an arbitration) such difference shall be referred to and determined by an arbitrator to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

32. Notwithstanding the provisions of section 27 (Power to stop up streets) of this Act or the stopping up of the streets or parts of streets mentioned in the schedule to this Act the South Eastern Electricity Board may exercise the same rights of access as it now enjoys to any electric lines works or apparatus in or under the said streets or parts of streets. For protection of South Eastern Electricity Board.

33. For the protection of the South Eastern Gas Board (hereafter in this section referred to as "the gas board") the following provisions shall unless otherwise agreed in writing between the Board and the gas board apply and have effect:— For protection of South Eastern Gas Board.

- (1) In this section unless the context otherwise requires—

(a) "apparatus" means any mains pipes or other works or apparatus belonging to the gas board or lawfully laid by them or by their predecessors;

PART II
cont.

(b) "the railway" means Work No. 6 authorised by this Act ;

(c) "plans" means plans sections and descriptions ;

(d) "street" includes any highway including a highway over any bridge and any road lane footway square court alley passage or public place whether a thoroughfare or not ;

(e) "discontinued street" means any street or part of a street in under upon or over which any apparatus is situate the whole or any portion or portions of which is or are stopped up (whether before after or by virtue of the passing of this Act) ;

(f) "existing use" means—

(i) in relation to a discontinued street stopped up before the date of the passing of this Act or a discontinued street being one of the streets or parts of a street mentioned in the schedule to this Act in respect of which no notice has previously been served under subsection (12) of this section the purpose for which the street was used immediately before the date of the passing of this Act ;

(ii) in relation to a discontinued street stopped up after the date of the passing of this Act in respect of which no notice has previously been served under subsection (12) of this section the purpose for which the same is used immediately before the date of such stopping up ;

(iii) in relation to a discontinued street whether stopped up before or after the date of the passing of this Act or being a street or part of a street mentioned in the schedule to this Act in respect of which a notice has previously been served under subsection (12) of this section the nature of the development specified in such notice or where more than one notice has been served under that subsection the nature of the development specified in the last of such notices ;

(g) "development" means all or any of the following in so far as they could or might prejudicially affect any apparatus that is to say the carrying out of any building engineering or other operations in under upon or over or the laying placing or storing of anything upon or the making of any change in the existing use of any discontinued street ;

(h) references to the acts or defaults of the Board include the acts or defaults of their contractors or agents or any workmen or servants or persons in the employ of the Board or such contractors or agents :

- (2) At least twenty-eight days before commencing to construct the railway the Board shall deliver to the gas board plans of the railway and if it should appear to the gas board that the construction repair renewal alteration maintenance or use of the railway will prejudicially affect any apparatus or impede the supply of gas the gas board may within fourteen days after the receipt by them of the plans give notice to the Board to carry out such works (hereafter in this section referred to as "specified works") as may be required by the notice (including without prejudice to the generality of the foregoing words the lowering or otherwise altering of the position of such apparatus and the supporting of the same and the substitution of other apparatus) in such manner as may be necessary :
- (3) Where notice is given by the gas board under the last foregoing subsection the specified works required by the notice shall be done and executed by and at the expense of the Board but to the satisfaction and under the superintendence of the engineer of the gas board (if after notice given by the Board to the gas board of the time and place of such execution the engineer chooses to attend) and the reasonable costs charges and expenses of such superintendence shall be paid by the Board :
- Provided that if the gas board by notice in writing to the Board within seven days after the receipt by the gas board of notice of the intended commencement by the Board of the construction of the railway so require the gas board may themselves do and execute such specified works and the Board shall on the completion thereof pay to the gas board the reasonable expenses incurred by them in the execution of such specified works :
- (4) The railway shall not be constructed otherwise than in accordance with the plans delivered to the gas board under subsection (2) of this section :
- (5) (a) If after any plans have been submitted to the gas board under subsection (2) of this section (hereafter in this subsection referred to as "the original plans") they are referred to arbitration under any other section of this Act the plans as settled by such arbitration (hereafter in this subsection referred to as "the substituted plans") shall forthwith be submitted to the

PART II
—cont.

gas board and for the purposes of this section the substituted plans shall be deemed to have been submitted to the gas board under subsection (2) of this section and the provisions of this section shall apply to the substituted plans as if the date on which they were submitted was a date not less than twenty-eight days before the Board commence to construct the railway ;

(b) The Board shall inform the gas board of the holding of any such arbitration and the gas board shall be entitled to be heard thereat and as from the date on which the substituted plans were submitted to the gas board the original plans shall be deemed never to have been submitted and not to have been required to have been submitted ;

(c) If the substituted plans are the same as the original plans the Board shall forthwith give to the gas board notice in writing to that effect and the giving of such notice shall be treated as the submission of substituted plans for the purpose of compliance with the requirements of this subsection so far as applicable :

- (6) The gas board may if they deem fit employ watchmen or inspectors to watch and inspect the railway during its construction repair or renewal where any apparatus may be prejudicially affected thereby and the reasonable wages of such watchmen or inspectors shall be borne by the Board and be paid by them to the gas board :
- (7) The Board shall indemnify the gas board against all claims demands proceedings costs damages and expenses made or taken against or recovered from or incurred by the gas board by reason or in consequence of any interruption in the supply of gas by the gas board which may without the written authority of the gas board be in any way occasioned either by reason of the exercise by the Board of the powers of this Act relating to the railway or by the acts or defaults (in or in connection with such exercise) of the Board and the Board shall pay to the gas board the value of any gas which the gas board may lose by reason of the acts or defaults of the Board in the construction of the railway :
- (8) The reasonable expense of all repairs or renewals of any apparatus or any works in connection therewith which may at any time hereafter be rendered necessary either by reason of the exercise by the Board of the powers of this Act relating to the railway or by the acts or defaults (in or in connection with such exercise) of the

Board or which may during the construction or within twelve months after the completion of the railway be rendered necessary by any subsidence resulting from the railway shall be borne and paid by the Board :

- (9) The Board shall not in the construction of the railway or in connection with the development of a discontinued street raise sink or otherwise alter the position of any apparatus or alter the level of any street in which such apparatus is situate so as to leave over such apparatus in any part a covering of less than the existing covering or three feet whichever may be the less (unless the Board shall in such case protect such apparatus from injury by artificial covering to the reasonable satisfaction of the gas board) or of more than the existing covering or five feet whichever may be the greater :
- (10) Where in consequence of the nature of any proposed development by the Board of a discontinued street it appears to the gas board to be reasonably necessary that any apparatus should be removed or diverted or that the position of any apparatus should be altered or that works (hereinafter referred to as “ protective works ”) for the protection of any apparatus should be executed the gas board may and (if so required by the Board in any case where it is reasonably practicable so to do) shall remove or divert or alter the position of or execute protective works in respect of the apparatus and of any apparatus connected therewith to such extent and in such manner as may be agreed or determined by arbitration and the Board shall repay to the gas board the amount of the costs and expenses reasonably incurred by the gas board in or in connection with such removal diversion or alteration or the execution of such protective works (including any costs reasonably incurred by the gas board under subsection (14) of this section) (which costs and expenses are hereafter in this subsection referred to as “ the said expenses ”):

Provided that if in carrying out any such diversion or alteration of position—

(a) (i) the gas board erect lay or place new apparatus in substitution for their existing apparatus ; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus ; or

PART II
—cont.

(b) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) or of greater capacity or apparatus of improved type ; or

(ii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which such greater depth is reasonably necessary in order to avoid interference with other underground apparatus works or structures ;

the gas board shall themselves bear (in the case referred to in paragraph (a) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the gas board resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in paragraph (b) of this proviso) such proportion of the said expenses as represents the amount by which such expenses exceed the cost which would have been incurred if the dimensions (other than length) or the capacity of the apparatus as laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth as the existing apparatus :

Provided also that where the apparatus had been laid or constructed in under upon or over the part of the discontinued street affected within the period of two years immediately preceding the giving of the notice required by subsection (12) of this section and at the time of the laying or construction of the apparatus the Board had given to the gas board notice in writing of their intention to carry out development necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Board if the said powers are exercised by the Board in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the gas board :

- (11) If any apparatus is retained in its present position in over upon or under the site of a discontinued street or if the position of any apparatus in over upon or under the site of a discontinued street is altered under subsection (10) of this section to a new position in over

upon or under the site of the same street the Board shall grant to the gas board free of cost an easement in perpetuity (including a right of access with or without vehicles) over and across any lands of the Board (including the said site) for the construction maintenance and user by the gas board of such apparatus:

(12) The Board shall give to the gas board not less than twenty-eight days' notice in writing of their intention to carry out any development of the site of a discontinued street and of the nature of such proposed development.

(13) If—

(a) within twenty-eight days after the receipt from the Board of any notice under subsection (12) of this section the gas board give to the Board notice in writing of their intention to remove or divert or alter the position of or to execute protective works in respect of any apparatus in under upon or over the discontinued street in respect of which notice has been given under the said subsection and at the same time deliver to the Board a plan of any diversion or alteration of position of the apparatus or particulars of any such protective works (as the case may be) or;

(b) in any case where it is reasonably practicable the gas board have been required by the Board to remove or divert or alter the position or execute protective works under subsection (10) of this section;

the Board shall not carry out the development referred to in the notice given by them as aforesaid until—

(i) it shall have been agreed between the Board and the gas board or settled by arbitration whether having regard to the nature of the proposed development the removal diversion or alteration or the execution of the protective works is reasonably necessary or practicable; and

(ii) the plans of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled:

Provided that if the proposals contained in any notice given to the Board by the gas board under this subsection and any plans delivered to the Board with such notice are not disapproved by the Board within twenty-eight days after the receipt thereof the said proposals

PART II
—cont.

shall be deemed for the purposes of this section to be reasonably necessary and the Board shall be deemed to have approved such plans:

- (14) Forthwith after the completion of any such removal or diversion or alteration of position of apparatus or of any such protective works the gas board shall if reasonably required by the Board fill in the excavation and make good the surface of the ground to the reasonable satisfaction of the Board:
- (15) The Board shall not carry out any development of the site of a discontinued street not being development the nature of which was indicated in the notice served on the gas board under subsection (12) of this section or if more than one such notice has been served the last of those notices:
- (16) The surface of the site of a discontinued street shall be maintained by the Board in reasonably good condition so as to prevent so far as practicable injury or damage to any apparatus in or under that site:
- (17) Any difference arising between the Board and the gas board under this section shall be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to such arbitration:
- (18) In settling any question under this section an arbitrator shall have regard to any duties or obligations which the gas board may be under in respect of any apparatus and to any duties or obligations which the Board may be under in respect of their undertaking and may if he so thinks fit require the Board to execute any works so as to avoid as far as may be practicable interference with any purpose for which the apparatus of the gas board is used.

For protection
of British
Transport
Commission.

34. The following provisions shall notwithstanding anything in this Act or shown upon the deposited plans and sections and unless otherwise agreed in writing between the Board and the commission apply and have effect:—

(1) In this section—

“the commission” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an Executive

in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;

PART II
—cont.

“the engineer” means an engineer to be appointed by the commission :

- (2) The commission may run over and use toll free with their engines carriages wagons and servants (whether in charge of engines carriages and wagons or not) for all purposes connected with their railway undertaking the railways (Works Nos. 6 and 7) by this Act authorised Provided that nothing in this section shall prevent the Board from imposing a toll or making a charge for haulage over the said railways on others than the commission :
- (3) The Board shall before commencing the construction of the said railways or either of them furnish to the commission for the approval of the engineer proper and sufficient plans sections drawings and specifications of any works proposed to be constructed as part of or in connection with the said railways :
- (4) The Board shall not commence the said works until such plans sections drawings and specifications shall have been approved in writing by the engineer or in case of difference between the engineer and the Board shall have been settled by arbitration :
Provided that if within twenty-eight days after such plans sections drawings and specifications have been furnished to the commission the engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved the same :
- (5) If any question affecting any plans sections drawings or specifications which may have been approved or deemed to have been approved under the foregoing provisions of this section shall be referred to arbitration under any other section of this Act the Board shall give to the commission notice thereof and the commission shall be entitled to be heard at such arbitration and the plans sections drawings and specifications settled by such arbitration shall be deemed to have been approved under this section :
- (6) The said works shall when commenced be carried out in accordance with the plans sections drawings and specifications approved or deemed to be approved or settled as aforesaid :
- (7) Any difference arising between the Board and the engineer under the preceding provisions of this section (other than a difference as to the meaning or construction of this section which does not arise in the course

PART II
—cont.

of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the Board and the commission or failing such agreement to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination:

- (8) If and so long as the commission become and remain liable in respect of any guarantee of interest on second debenture stock subsection (1) of section 38 of the Act of 1920 shall apply and have effect in relation to the exercise of the powers conferred upon the Board by this Act as if the said subsection were re-enacted in this Act with the following modifications (that is to say) for the reference to the former Harbour Acts there shall be substituted a reference to the existing Acts and for the references to the railway companies there shall be substituted a reference to the commission.

PART III

FINANCIAL

Application
of funds.

35. The Board may apply to the purposes of this Act or to the general purposes of the undertaking to which capital is properly applicable any moneys which by subsection (1) of section 41 (Power to raise additional debenture stock) of the Act of 1920 as amended by section 20 (Power to raise additional debenture stock) of the Act of 1926 they are authorised to raise by the creation and issue of second redeemable debenture stock (in this Act referred to as "second debenture stock") and which may not be required for the purposes to which such moneys are by any of the existing Acts made specially applicable.

Redemption
of second
debenture
stock.

36. Subject to the provisions of subsection (1) of section 41 (Power to raise additional debenture stock) of the Act of 1920 and to any conditions as to time or terms of repayment upon which the stock shall be created and issued all second debenture stock created and issued by the Board shall be redeemable at the option of the Board by any one or more of the following means:—

- (1) by means of a redemption fund formed in pursuance of section 37 (As to formation of redemption fund) of this Act;
- (2) by annual instalments in accordance with subsection (1) of section 38 (Power to pay off second debenture stock by annual drawings or by purchase) of this Act;

- (3) by the purchase and redemption of the stock in accordance with section 47 (Application of redemption fund) of the Act of 1920 or subsection (2) of the said section 38 of this Act;
- (4) by paying off the whole or part of the stock in accordance with the provisions of section 40 (Further power to pay off second debenture stock) of this Act;
- (5) by redemption at such time and upon such terms and in such manner as may be agreed between the Board and any holder of the stock:

Provided that all money borrowed by the Board by the creation and issue of second debenture stock shall be paid off within sixty years from the date of borrowing.

37.—(1) If by the resolution creating any second debenture stock the Board determine that the stock so created shall be redeemable by accumulations of the sums appropriated to the redemption fund hereinafter mentioned and the stock is issued so as to be redeemable as aforesaid the Board shall at yearly or half-yearly intervals appropriate to a fund for the redemption of the stock so issued such sums as with any accumulations thereof will be sufficient to pay off within sixty years from the date of borrowing the money in respect of which such stock was issued. As to formation of redemption fund.

(2) It shall not be obligatory on the Board to make any appropriation under this section until after the expiration of five years from the date of borrowing.

(3) In the Act of 1920 and this Act unless there be something in the subject or context repugnant to such construction the expression “the redemption fund” means the fund referred to in subsection (1) of this section.

38.—(1) If by the resolution creating any second debenture stock the Board determine that the stock so created shall be paid off by annual instalments and the stock is issued subject to repayment by annual instalments the Board shall annually draw by lot such amount of stock as shall be equivalent to the instalment to be repaid in that year and the Board shall cause a notice signed by the register to be given to the persons entitled to the stock to be paid off pursuant to such lot and such notice shall state the sum proposed to be paid off and that the same will be paid together with the interest due thereon at a place and time to be specified. Power to pay off second debenture stock by annual drawings or by purchase.

(2) The Board may in any year instead of drawing the amount of the instalment to be repaid in that year use the whole or part of that instalment in the purchase and redemption of second debenture stock.

PART III
—cont.

(3) Any second debenture stock paid off or purchased and redeemed under the provisions of this section shall thereupon be cancelled by the Board and on such cancellation the stock and all interest thereon which has not already become payable shall be by virtue of this subsection extinguished and the borrowing powers of the Board shall be extinguished to the extent of the total nominal amount of the stock paid off or purchased and redeemed.

Power to
revoke
resolution
creating stock.

39. The Board may by resolution revoke at any time in whole or in part any prior resolution for the creation of second debenture stock if and so far as the resolution has not been acted on by the issue of stock thereunder.

Further power
to pay off
second
debenture
stock.

40. Subject to any conditions as to time or terms of repayment upon which any second debenture stock shall have been created and issued the Board may at any time pay off so much of the stock as for the time being shall be outstanding or such portion thereof as they may desire to pay off.

Investment of
redemption
fund money.

41. Pending or in default of any application of any money held on account of the redemption fund to the purposes authorised by the Act of 1920 and this Act the Board shall invest that money in statutory securities and the interest or annual proceeds received from the money and investments held on account of the redemption fund shall be accumulated in the way of compound interest by investment in statutory securities.

Priorities
among holders
of debenture
stock.

42. Notwithstanding anything contained in section 30 (No priorities amongst holders of same class) of the Act of 1901 as applied to the second debenture stock by section 44 (Application of certain provisions of Acts of 1901 and 1906) of the Act of 1920 the Board may by the resolution creating any portion of such stock determine that the holders thereof shall have priority over the holders of any debenture stock which may be created and issued after the creation and issue of the portion of the stock to which the resolution relates and any debenture stock created and issued after the creation and issue of the stock to which the resolution relates shall rank both as to capital and interest after the last-mentioned stock.

Priority of
existing
redemption
fund.

43. Notwithstanding anything contained in this Act the Board shall not in any year make any appropriations to the redemption fund nor shall they pay off any second debenture stock or any portion thereof by annual drawings or otherwise until they have set apart for that year such sum as is required for the redemption of so much of the existing Dover Harbour redeemable debenture stock as shall be then outstanding.

Application of
proceeds of sale
etc. of land.

44. All such money being capital or in the nature of capital and not being otherwise wholly or in part appropriated or made applicable by law or valid contract as shall from time to time

arise from any sale lease or other disposition of land or other property of the Board on which any second debenture stock is charged shall be applied in the manner following (that is to say):—

PART III
—cont.

(1) If the Board have formed a redemption fund in pursuance of section 37 (As to formation of redemption fund) of this Act the money shall be paid into that fund:

(2) If no such redemption fund has been formed the money shall be either applied in the purchase and redemption of second debenture stock or invested by the Board in any statutory security.

45. Section 49 (Annual return to Ministry of Transport with Amendment of respect to redemption fund) of the Act of 1920 shall be read and have effect as if the several references therein to the said Act of 1920 were references to this Act. section 49 of Act of 1920.

46. Section 51 (Power to reborrow) of the Act of 1920 shall be read and have effect as if the reference therein to the period prescribed by the section of that Act of which the marginal note is "Redemption fund for extinction of stock" were a reference to the period mentioned in section 37 (As to formation of redemption fund) of this Act. Amendment of section 51 of Act of 1920.

47. The Board may during the whole or any part of the period of construction of any work which they are authorised to construct and from which revenue may after its completion be derived charge as capital expenditure and as part of the costs of constructing the work interest at such rate as the Board may determine but not exceeding the rate of interest payable by the Board on any money borrowed by them and expended on capital account in the construction of the work and the acquisition of lands for the purpose: Power to charge interest to capital.

Provided that interest shall not be so charged for a period exceeding five years from the commencement of the construction of the work.

48. It shall not be lawful to exercise the powers conferred on the Board by section 35 (Application of funds) of this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury. 9 & 10 Geo. 6. c. 58.

PART IV

MISCELLANEOUS

49. The Board may from time to time with any government department the British Transport Commission the Dover Corporation or any other person enter into and carry into effect and vary or rescind contracts agreements and arrangements or confirm and make binding on the parties thereto any agreements or Power to make contracts etc.

PART IV
—*cont.*

contracts which have been entered into prior to the passing of this Act with respect to the construction tenure and user by them or any or either of them of the authorised works or any part thereof or with respect to the application by the Board of the revenues of the undertaking or any part thereof or with respect to the cancellation of the existing Dover Harbour redeemable debenture stock for the time being outstanding or with respect to the raising of further moneys by the Board under the provisions of the existing Acts and this Act or in relation to the dues rates rents charges and taxes levied or to be levied by the Board or with respect to any commutation thereof Provided that no such contract agreement or arrangement shall prejudice or affect the rights or interests of persons other than the parties thereto without the consent in writing of such persons.

Disability
of members
of Board for
voting on
account of
interest in
contracts etc.

50.—(1) If a member of the Board has any pecuniary interest direct or indirect in any contract or proposed contract with the Board relating to the execution of works for or on behalf of the Board or the supply of materials to the Board and is present at a meeting of the Board or of any committee or sub-committee of the Board at which the contract is the subject of consideration he shall at the meeting as soon as practicable after the commencement thereof disclose the fact and shall not take part in the consideration or discussion of or vote on any question with respect to the contract.

(2) For the purposes of this section a person shall (subject as hereafter in this subsection provided) be treated as having indirectly a pecuniary interest in a contract if—

- (a) he or any nominee of his is a member of the company or other body with which the contract is made or is proposed to be made;
- (b) he is a partner or is in the employment of the person with whom the contract is made or is proposed to be made:

Provided that—

- (i) this subsection shall not apply to membership of or employment under any public body;
- (ii) a member of the company or other body shall not by reason only of his membership be treated as being so interested if he has no beneficial interest in any shares of that company or other body.

(3) Where a member of the Board has indirectly a pecuniary interest in a contract and would not fall to be treated as having such an interest but for the fact that he has a beneficial interest in shares of a company or other body then if the total nominal value of those shares does not exceed two hundred pounds or one-hundredth of the total nominal value of the issued share capital of the company or body whichever is the less so much

of subsection (1) of this section as prohibits him from taking part in the consideration or discussion of and from voting on any question with respect to the contract shall not apply to him without prejudice however to the duty of disclosure imposed by the said subsection (1):

Provided that where the share capital of the company or other body is of more than one class this subsection shall not apply if the total nominal value of all the shares of any one class in which he has a beneficial interest exceeds one-hundredth part of the total issued share capital of that class of the company or other body.

(4) In the case of married persons living together the interest of one spouse shall if known to the other be deemed for the purposes of this section to be also the interest of that other spouse.

(5) A general notice given in writing to the register by a member of the Board to the effect that he or his spouse is a member of or in the employment of a specified company or other body or that he or his spouse is a partner or in the employment of a specified person shall unless and until the notice is withdrawn be deemed to be a sufficient disclosure of his interest in any contract or proposed contract relating to that company or other body or to that person which may be the subject of consideration after the date of the notice.

(6) The register shall record in a book kept for the purpose particulars of any disclosure made under subsection (1) of this section and of any notice given under subsection (5) thereof and the book shall be open at all reasonable hours to the inspection of any member of the Board.

(7) If any person fails to comply with the provisions of subsection (1) of this section he shall for each offence be liable on summary conviction to a fine not exceeding fifty pounds unless he proves that he did not know that a contract or proposed contract in which he had a pecuniary interest was the subject of consideration at the meeting.

(8) A prosecution for an offence under this section shall not be instituted except by or on behalf of the Director of Public Prosecutions.

(9) The Board may by resolution provide for the exclusion of a member from a meeting of the Board or of any committee or sub-committee of the Board whilst any contract or proposed contract in which he has such an interest as aforesaid is under consideration.

(10) In this section—

the expression “shares” includes stock and the expression “share capital” shall be construed accordingly; and

PART IV
—cont.

the expression "public body" has the same meaning as in the Local Government Act 1933.

As to
qualifications
of members of
Board.

51. A person shall be disqualified for being elected or appointed or being a member of the Board if he holds any paid office under the Board.

Removal of
sunk stranded
or abandoned
vessels.

52.—(1) Whenever any vessel is sunk stranded or abandoned in any part of the harbour or in or near any approach thereto the Board may if they think fit cause the vessel or any part thereof to be raised removed blown up or destroyed.

(2) The Board may recover from the owner of any such vessel all expenses incurred by the Board in respect of the raising removal blowing up or destruction thereof or any part thereof or in raising removing saving or storing any furniture tackle and apparel thereof or any cargo goods chattels and effects raised removed or saved therefrom or in marking lighting watching buoying or otherwise controlling such vessel either summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction:

Provided always that the Board may if they think fit and shall if so required by the owner of the vessel cause such vessel and any furniture tackle apparel cargo goods chattels and effects or any part of the same respectively so raised removed saved or stored as aforesaid to be sold in such manner as they think fit and out of the proceeds of the sale may after paying any duties of customs or excise which shall be payable in respect of the said cargo goods chattels and effects reimburse themselves for any such expenses and duties and shall hold the surplus if any of those proceeds in trust for the persons entitled thereto and in case such proceeds shall be insufficient to reimburse the Board such expenses and duties the deficiency may be recovered by the Board in manner aforesaid.

(3) The Board shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Board notice in writing of his intention himself to raise and remove the vessel he shall be at liberty to do so in lieu of the Board:

Provided that if the owner gives any such notice as last aforesaid—

(a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by or on behalf of the Board for the purpose of preventing interference with navigation; and

(b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Board shall be at liberty to cause the vessel to be raised or removed or blown up or otherwise destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(4) The Board shall (except in any case which in their opinion is a case of emergency or when required by the owner to sell) before selling any vessel under the provisions of this section give to the owner seven days' notice of their intention so to do.

(5) Any notice given by the Board pursuant to subsection (3) or subsection (4) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Board then by exhibiting such notice at the principal office of the Board for twenty-four hours in the case of a notice given under the said subsection (3) or for seven days in the case of a notice given under the said subsection (4).

(6) In this section the expression—

“owner” in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of that vessel at the time the said expenses were incurred by the Board or if there was then no owner of the vessel the owner of the vessel at the time of the sinking stranding or abandonment thereof;

“vessel” includes a seaplane and other aircraft.

(7) The powers conferred on the Board by this section shall be in addition to and not in derogation of any other powers exercisable by them for or with respect to the removal of wrecks.

(8) Except for the purpose of removing any obstruction to the harbour nothing in this section shall entitle the Board to remove any wreck (as defined in section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the Receiver of Wreck under the provisions of Part IX of the said Merchant Shipping Act and if the Board shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

PART IV
—cont.

(9) The powers conferred on the Board by this section shall not be exercisable in relation to any vessel which was sunk stranded or abandoned before the twenty-sixth day of November one thousand nine hundred and forty-nine.

(10) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to His Majesty or held by any person on behalf of or for the benefit of the Crown nor shall any of the powers conferred by this section be exercised if by such exercise the Crown would become liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for any expenses incurred by the Board except where such consent is given as is provided for in section 53 (As to vessels in which the Crown have an interest) of this Act and the vessel was not such a vessel as aforesaid at any such time as is mentioned in subsection (6) of this section.

As to vessels
in which the
Crown have
an interest.

53.—(1) The Board shall before taking possession of raising removing blowing up or destroying any vessel sunk stranded or abandoned under the powers conferred upon them by this Act or by any other enactment give to the Admiralty and to the Minister notice in writing of their intention so to do and if within fourteen days after the receipt of such notice the Admiralty or the Minister gives to the Board—

(a) a certificate that the vessel was sunk stranded or abandoned by a person acting on behalf of His Majesty or otherwise by an officer or servant of the Crown acting in the course of his duty as such and that it is not in the national interest that the Board should take possession of the vessel or that the vessel should be raised removed or blown up or destroyed ; or

(b) a notice that the exercise by the Board of the rights of recovery conferred by subsection (2) of section 52 (Removal of sunk stranded or abandoned vessels) of this Act would render the Crown liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for all or a substantial proportion of the expense incurred by the Board ;

the Board shall not without the consent in writing of the authority by whom the certificate was issued or the notice given take possession of raise remove blow up or destroy such vessel Provided that in any case which in their opinion is a case of emergency the Board may take possession of raise remove blow up or destroy any vessel without giving notice of their intention so to do to the Admiralty or to the Minister and in that event the Board shall not be entitled to recover from any person the expenses incurred by them in so doing if the effect of such recovery would be to render the Crown so liable.

(2) If the Board shall mark light watch buoy control or give warning to shipping of the presence of any vessel in respect of which the Admiralty or the Minister have refused their consent under subsection (1) of this section the Board shall not be entitled to recover the expenses of so doing from the owner of the vessel but may apply to the Admiralty or to the Minister as the case may be for the reimbursement of the expenses reasonably incurred by them in so doing and the Admiralty or the Minister as the case may be may make such payment as the Treasury may determine.

PART IV
—cont.

54. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred upon him or the giving of any consent or approval under this Act and subsections (2) to (5) of section 290 (Powers of government departments to direct inquiries) of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Board were a local authority. Inquiries by Minister.

55. The following provisions of the existing Acts are hereby repealed:—

The Dover Harbour Act 1828

- Section 3 (Bonds etc. under the former Acts to remain in force);
- Section 4 (Officers under former Acts to account under this Act);
- Section 5 (Warden etc. empowered to execute the Act);
- Section 6 (Warden etc. not to hold places of profit or be concerned in contracts);
- Section 11 (Officers under former Acts (except the treasurer) to be continued):

The Harbours and Passing Tolls etc. Act 1861

- Section 48 (Members of Board not to hold places of profit or be concerned in contracts):

The Dover Harbour Act 1873

- Section 6 (Power to borrow at interest etc.);
- Section 7 (Sinking fund to be formed);
- Section 8 (Priority of charges for borrowed money over other debts);
- Section 9 (Application of income and money borrowed);
- Section 10 (Saving for existing mortgagees rights etc.):

36 & 37 Vict.
c. CCXXXV.

The Dover Harbour Act 1898

- In section 25 (Application of certain provisions of Act of 1891) the words “and 48 (Power for agreements between Harbour Board and railway companies etc.)” and the word “respectively”:

PART IV
—cont.

The Act of 1920

Subsection (2) of section 41 (Power to raise additional debenture stock) ;

Section 45 (Redemption fund for extinction of stock) ;

Section 46 (Proceeds of sale &c. of land to be paid into redemption fund).

Saving for
town and
country
planning.

56. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

57. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Board.

SCHEDULE

STREETS AND PARTS OF STREETS IN THE BOROUGH OF DOVER WHICH MAY BE STOPPED UP

(1) The public highway known as Union Street commencing at its junction with Snargate Street proceeding thence in an easterly direction for a distance of 472 feet and terminating at its junction with Wellington Bridge.

(2) The public highway over and along Wellington Bridge and the eastern approach thereto commencing at the junction of Wellington Bridge with Union Street proceeding thence in an easterly direction for a distance of 165 feet and terminating at the junction of the eastern approach to Wellington Bridge with the public highway described in paragraph (3) hereof.

(3) The public highway 28 feet in width commencing at its junction with the eastern end of the public highway described in paragraph (2) hereof proceeding thence in a south-easterly direction for a distance of 48 feet and terminating at its junction with the north-western end of the public highway described in paragraph (4) hereof.

(4) The public highway 28 feet in width and 97 feet in length commencing at its junction with the south-eastern end of the highway described in paragraph (3) hereof proceeding thence in a south-easterly direction terminating in the Esplanade and lying immediately to the north of the site of the premises formerly known as the Esplanade Hotel.

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ARRANGEMENT OF SECTIONS

Preliminary

Section

1. Short and collective titles.
2. Interpretation.
3. City map.
4. Commencement of Act.

Extension of city

5. Extension of city.
6. Extension of parish of Plymouth.
7. Alteration of parishes.
8. Existing lord mayor aldermen and councillors.
9. Number of councillors and aldermen.
10. Municipal wards.
11. Election of additional alderman and councillors.
12. Retirement of councillors and alderman.
13. Qualification for election and office.
14. County electoral divisions.
15. District councillors and continuance of rural council.
16. Parish councils.
17. As to casual vacancies.

Powers property and liabilities of existing authorities

18. Powers of county and district councils.
19. Liquidation of current debts and liabilities.
20. Audit of accounts of parish councils.
21. Jurisdiction of city justices coroner etc. extended.
22. County police.
23. As to schools in added areas.
24. As to divisional administration schemes.
25. Transfer of duties under section 1 of Children Act 1948.
26. Recovery of cost of provision of accommodation under
Part III of National Assistance Act 1948.

Adoptive Acts byelaws and regulations

Section

- 27. Adoptive Acts.
- 28. Sunday Entertainments Act 1932.
- 29. Byelaws regulations and scales of charges.

Supplementary provisions

- 30. Rating area and valuation lists.
- 31. Compensation to existing officers.
- 32. Provisions as to register of electors.
- 33. Executive councils.
- 34. Extension of licensing planning area.
- 35. Town planning.
- 36. Entries in registers.
- 37. Financial adjustments.
- 38. As to registration districts.
- 39. Crown rights.
- 40. Other saving provisions.
- 41. Power to borrow.
- 42. Saving for powers of Treasury.
- 43. Application of provisions of Act of 1938.
- 44. Costs of Act.

SCHEDULE—

- Part I.—Local Acts.
- Part II.—Orders.